

24CMCV00618 24CMCV00618

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-25

Motion: DEFENDANT THINK TOGETHER, INC.'S MOTION TO QUASH SERVICE

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Case Number: 24CMCV00618 Hearing Date: June 25, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

J.L.,

Plaintiff,

vs.

COMPTON

UNIFIED SCHOOL DISTRICT, et al.,

Defendants.

COMPTON

UNIFIED SCHOOL DISTRICT,

Cross-Complainant,

vs.

THINK

TOGETHER, INC.,

Cross-Defendant.

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CASE NO: 24CMCV00618

[TENTATIVE]

ORDER RE: DEFENDANT THINK TOGETHER, INC.'S MOTION TO QUASH SERVICE

Dept.

A

DATE:

June 25, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 04/25/2024

TRIAL:

08/31/2026

MOVING PARTY: Defendant

Think Together, Inc.

RESPONDING PARTY: None

1. Background

Plaintiff J.L. ("J.L.") alleges that at all relevant times, she was a student at Enterprise Middle School, which was operated and controlled by defendant Compton Unified School District ("District"). J.L. alleges that on May 10, 2023, she was sexually, physically, and verbally assaulted by another student while on campus grounds at Enterprise Middle

School. J.L. alleges that other students had reported assaults by the perpetrator prior to the incident, but that District concealed evidence relating to prior assaults and failed to adequately protect and supervise J.L.

District filed a cross-complaint against cross-defendant Think Together, Inc. ("Think Together") for express contractual indemnity, equitable indemnity, and apportionment of fault.

On April 30, 2026, J.L. amended the First Amended Complaint ("FAC") to substitute Think Together as a Doe defendant.

2. Discussion

Think Together moves to quash J.L.'s service of the summons and complaint on the grounds that there has been no service of the summons and complaint and that Think Together cannot be substituted as a Doe defendant because J.L. was previously aware of Think Together's identity. J.L. does not oppose this motion.

Under Code of Civil

Procedure § 418.10, a defendant may move to quash service of summons "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" on the ground of lack of jurisdiction over them. Improper service of process prevents a court from exercising jurisdiction over a defendant. (Stancil v.

Superior Court (2021) 11 Cal.5th 381, 392-393.) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).)

There has been no proof of service of the summons and First Amended Complaint filed upon Think Together. Think Together claims in its motion that it was never served with the summons and First Amended Complaint. Therefore, there is, as of this time, nothing to quash. The instant motion is premature. The court will therefore deny Think Together's motion to quash service of the summons and complaint.

3. Conclusion

Based on the foregoing, the court DENIES Think

Together's motion to quash service of the summons and complaint, without prejudice.

Think

Together is ordered to give notice.

IT

IS SO ORDERED.

DATED: June 25, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court